

Tentative Rulings for August 7, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2102359	MICHAEL A. CAPOZZA VS JOSEPH RUBIN	MOTION FOR DISCHARGE BY RICHARDSON GRISWOLD, ESQ

Tentative Ruling:

Moving party: Receiver, Richardson Griswold
Responding party: Plaintiff, Michael A. Capozza ("Plaintiff") (limited opposition);
Defendant, Joseph Rubin

This action is brought by Plaintiff Michael Capozza, as Trustee of the Michael A. Capozza Separate Property Trust dated January 25, 2018 ("Plaintiff"), individually and derivatively, on behalf of 395 Palm Canyon, LLC ("395 PC"). Related actions are pending in Riverside Superior Court (Capozza v. 395 Palm Canyon LLC [CVPS2101309] and Ane Holdings, LLC v. Rubin et al. [CVPS2102620]). Plaintiff alleges he was fraudulently induced to invest \$500,000 in 395 PC, a real estate venture tied to the Rubin family's cannabis business, amid financial distress resulting from mismanagement of funds. The Complaint in this case was filed on May 12, 2021.

On June 3, 2021, Plaintiff moved for the appointment of a receiver under Code of Civil Procedure section 564, citing various grounds including insolvency and the risk of loss. The motion was granted on February 10, 2022, by Judge Randall White, with Judge Randolph Rogers signing of order appointing Richardson Griswold as receiver on February 24, 2022. The order allowed for Griswold to charge fees at \$300 per hour and specified that the receiver's expenses would be paid from the receivership estate. (See Order entered on February 24, 2022, ¶¶ 3, 17.)

Griswold now seeks an order directing payment of taxes in accordance with its CPA's assessment of equitable distribution of tax liabilities among member of 395 PC for the tax years 2021, 2022, and 2023 (\$7,600); payment of receivership fees (\$27,094.19) and attorney's fees (\$8,627.82); discharge of receiver from its duties; and exoneration of the surety.

Defendant Joseph Rubin opposes the motion, arguing fees should fall to the Plaintiff as he sought the receivership over objections. Rubin also elaborates on disputes with Plaintiff regarding the appointment's validity.

Plaintiff filed a late opposition, agreeing with the fees and payment of tax liabilities but contending they should be assessed against S. Rubin and J. Rubin on basis that this action was necessary to uncover Defendants' misappropriation of funds and that Plaintiff did not receive any return on his initial capital contribution into 395 PC of \$500,000.

In summary, proper grounds exist to grant the motion for payment of fees and costs, allocation of tax liabilities, discharge of receiver from duties and exoneration of the surety. However, the matter will be continued and the Court orders the receiver to

provide details of his services rendered as set forth in California Rules of Court, rule 3.1184, subdivision (d).

I. Legal Standard.

A receiver must obtain separate court approval to pay attorney fees, which is done upon noticed motion or stipulation of all parties at the time the final account and report are presented for settlement. (Cal. Rules of Court, rule 3.1184(a).) Similarly, the receiver must present a final account and report by noticed motion or stipulation of all parties, together with a request for discharge and a request for exoneration of the receiver's surety. (Rule 3.1184(a); *County of Sacramento v. Rawat* (2021) 65 Cal. App. 5th 858, 865.) No memorandum in support of the motion or stipulation need be submitted unless ordered by the court. (Cal. Rules of Court, rule 3.1184(b).)

Notice of the motion or stipulation must be given to every person or entity known to the receiver to have a "substantial, unsatisfied claim that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it." (Cal. Rules of Court, rule 3.1184(c); *County of Sacramento v. Rawat, supra*, 65 Cal. App. 5th at 866.) The motion and supporting papers must be filed and served pursuant to Code of Civil Procedure section 1005, subdivision (b).

While rule 3.1184 does not expressly address objections to the final account and report, all parties beneficially interested should be able to oppose it by filing and serving opposing papers pursuant to section 1005, subdivisions (b) and (c), and by appearing at the hearing. (*Kirk v. Kirk* (1966) 243 Cal. App. 2d 580, 582; *MacMorris Sales Corp. v. Kozak* (1967) 249 Cal. App. 2d 998, 1005 [parties beneficially interested in receivership estate may attack receiver's accounting].)

If the final account claims any allowance of compensation for the receiver or an attorney employed by the receiver, it must state in detail what services were performed by the receiver or attorney, and whether previous compensation allowances were made to the receiver or attorney and those amounts. (Rule 3.1184(d).)

After approval of the receiver's report and accounting, the receiver should be discharged in accordance with the order approving the final report and account and after final disbursements. (See *Coburn v. Ames* (1881) 57 Cal. 201, 202-203.) After discharge, a receiver has no further official duties and generally is not a proper party to any action. (*Jun v. Myers* (2001) 88 Cal. App. 4th 117, 124.)

II. The motion will be continued.

Here, the receiver has demonstrated proper grounds to grant the order as requested. Fees and tax liabilities should be equally apportioned among the parties. The final accounting provided by Griswold shows that the receivership estate balance is zero as of January 2026. The costs of receivership is generally paid out from the property in the receivership estate. (*City of Chula Vista v. Gutierrez* (2012) 207 Cal.App.4th 681, 685-686.) But the court has discretion to impose the receiver's costs on the party who sought appointment of the receiver or to apportion the costs among

the parties based on the circumstances. For instance, “[a] court may require one or more parties to pay for receiver fees where the property subject to the receivership is inadequate to compensate the receiver and/or where other equitable circumstances support imposing fees on a party.” (*Id.* at 685-686.)

However, the motion fails to include any details of the services rendered by the receiver as set forth in California Rules of Court, rule 3.1184(d). Griswold’s declaration includes final accounting of the receivership account from February 2022 through April 2026. (Ex. D.) Griswold’s declaration also includes time record for the Guerin Law Firm, which was forwarded to Griswold, itemizing the describing the firm’s services from December 2024 through November 2025. (Ex. E.) However, Griswold does not provide details of what services have been performed in connection with his proposed fees of \$27,084.19. Therefore, Griswold’s proposed fees cannot be approved at this time until he complies with rule 3.1184, subdivision (d). The rules of court require that: “If any allowance of compensation for the receiver or for an attorney employed by the receiver is claimed in an account, it must state in detail what services have been performed by the receiver or the attorney and whether previous allowances have been made to the receiver or attorney and the amounts.” (Cal. Rules of Court, rule 3. 1184(d).) As such, the Court continues the hearing, and orders the receiver to file a declaration including the details of the receiver’s services performed under the receivership 5 Court days prior to the next hearing. This ensures transparency and accountability in compensating the receiver and strengthens the Court’s ability to make an informed decision regarding the fee request.

The hearing is continued to 10/2/2026 at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406420	DUPUY VS GUMM	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party:	Plaintiffs and Cross-Defendants Kenneth Michael Dupuy and Jessie Dupuy (pro per)
Responding party:	Defendants Arthur Lester Gumm and Andrea Gumm

This is a nuisance neighbor dispute between Plaintiffs Kenneth Michael Dupuy and Jessie Dupuy (collectively the “Dupuys” or “Kenneth” and “Jessie”), in pro per, and Arthur Lester Gumm and Andrea Gumm (collectively the “Gumms” or “Arthur” and “Andrea”). Plaintiffs filed this action on 11/21/24. On 8/19/25, Plaintiffs filed their operative Third Amended Complaint (“TAC”) asserting causes of action for: 1) civil harassment, 2) private nuisance, 3) intentional infliction of emotional distress, 4) negligence, and 5) intentional interference with quiet enjoyment. Plaintiffs allege that in December 2024 they obtained a 3-year restraining order against Arthur and Defendants

have interfered with their quiet enjoyment and harassed them. On 9/25/25, the Gumms filed their operative First Amended Cross-Complaint (“FAXC”) against the Dupuys.

Plaintiffs bring the instant motion for protective order to control the way in which Plaintiff Jessie Dupuy sits for her deposition. Plaintiff agrees to sit for a deposition. However, Plaintiff asks that she be allowed to appear remotely and that “Defendants’ accompanying deposition document demands be regulated to avoid duplicative, private, overbroad, and previously satisfied production.” (Mot. p.4:9-10.) Plaintiffs contend the court previously denied their requests for written-only deposition questions but then permitted Plaintiff Arthur Gumm’s deposition to be taken remotely. Plaintiff Jessie Dupuy asserts she is a protected person under the civil harassment restraining order issued against Arthur Gumm.

Defendants oppose the motion arguing the motion is unsupported by any authority and Defendants have legitimate concerns that Plaintiffs will use a remote deposition to secure an unfair advantage. Defendants are worried that if the deposition takes place remotely, Plaintiffs will use artificial intelligence to analyze the deposition and generate responses to questions. Defendants note Plaintiff Kenneth Dupuy recently laughed an AI company named “NeuroForge Technologies.” Defendants are concerned allowing a remote deposition would permit Plaintiffs to be “coached” by AI. Defendants distinguish the court’s previous ruling on Arthur Gumm’s motion for protective order and note Gumm brought that motion because Plaintiff Kenneth Dupuy sought to personally take Mr. Gumm’s deposition, despite the restraining order. Defendants note they will not be present at the deposition location and counsel will be the one questioning Mrs. Dupuy. Defendants ask for \$1,532.50 in monetary sanctions against Plaintiffs for bringing a motion without legitimate grounds.

Analysis

I. Meet and Confer

A motion for a protective order shall be accompanied by a meet and confer declaration. (Cal Code Civ Proc § 2031.060.) The meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Cal. Code Civ. Pro. §2016.040.) Whether a “reasonable and good faith attempt” was made requires an “evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit.” (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.)

The motion is supported by the declaration of Plaintiff Kenneth Dupuy who states “Plaintiffs promptly met and conferred with defense counsel” after receiving the deposition notice. (Dupuy Decl. ¶5.) Dupuy states Defendant’s counsel refused their request for a remote deposition appearance. (¶11.) Dupuy explains various conversations he had with defense counsel (¶13), including that Attorney Lynch stated the deposition would occur less than fifteen miles from Plaintiffs’ residence, at a neutral court reporter’s office, with free parking, and without Arthur or Adnrew Gumm physically

present in the room. (¶13.) It is clear the parties have discussed this issue and satisfied the meet and confer requirement.

II. Protective Orders

A court should “limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (CCP § 2017.020(a).) CCP § 2025.420(b) provides that “for good cause shown,” the court may issue a protective order “to protect any party ... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The burden is on the moving party to establish “good cause” for the requested relief. (See *Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi v. Deutsche Bank Nat’l Trust Co.* (2014) 223 Cal.App.4th 261, 318.)

On June 1, 2026, the Court granted Arthur Gumm’s motion for protective order, in part, and said: “[G]iven the restraining order, the contentious nature of this dispute by admission of both parties, and the prior discovery disputes between the parties, the court GRANTS the motion in part and orders that if the deposition goes forward, it will proceed remotely via video and that all discussions take place on the record.” (6/1/26 Tentative Ruling.) That situation was different, however, in that Plaintiff Kenneth Dupuy sought to question Arthur Gumm personally since Plaintiffs are not represented by counsel. Given the restraining order, it is not proper, legal, or wise for the parties to be physically present in the same location. The instant situation is different because Defendant’s counsel has represented that Defendants will not be physically present at the deposition. There is no concern that the parties will be physically in the same location.

Natural persons must be deposed within 75 miles from their residence. (CCP §2025.250(a).) The deposition notice indicates the deposition will take place in Anaheim, California, which Defendant’s counsel states is approximately 11 miles away from Plaintiffs’ residence in Corona, California. (Slater Decl. ¶2.) This complies with CCP §2025.250(a).

Under CCP §2025.310(a), “the deposition officer may attend the deposition at a different location than the deponent via remote means” at the election of either the deponent or the deposing party. Parties other than the deponent and attorneys of record may, but are not required to, be physically present at the deposition location. (CCP§2025.310(b).)

California Rules of Court, Rule 3.1010(c) states: “A deponent must appear as required by statute or as agreed to by the parties and deponent.” Subsection (b) notes any party “other than the deponent” may appear and participate in a remote deposition subject to two requirements.

Defendants are correct the applicable statutes require a deponent to appear at a deposition as noticed. Here, the deposition was noticed to be in-person at a stated location that complies with the distance limits under the Code. The court has discretion

to issue a protective order to protect a party “from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (CCP § 2025.420(b).) There is no evidence of annoyance, embarrassment, or oppression.

Plaintiffs argue requiring a deposition to be in person creates an undue burden and expense and will limit their ability to hire an attorney to represent them on a limited basis. Plaintiffs argue it will be much less expensive to pay an attorney to appear remotely to defend the deposition than to require that attorney to appear in person. This argument is unavailing inconsistent with CCP §2025.310(b): “any party or attorney of record may, but is not required to, be physically present at the deposition at the location of the deponent.” Plaintiffs have not provided any evidence of an attorney they wish to retain and the cost of having that attorney appear in person for the deposition versus appearing remotely for the deposition. Even if Plaintiffs had provided that evidence, their counsel could appear remotely if necessary. However, Plaintiff is required to appear in person for her deposition and has not provided any valid basis to support her request to appear remotely.

Defendants have clarified that they will not attend the deposition at the same location as Plaintiffs. This eliminates any concerns the court had when ruling on Arthur Gumm’s motion for protective order. Plaintiffs have not provided a reason that they cannot be physically present at a neutral court reporter’s office with a court reporter and Defendant’s counsel.

The Court denies the request for a protective order to have Plaintiff appear remotely for her deposition.

Further and out of an abundance of caution, the Court orders that Defendants not be physically present at Plaintiff’s deposition. Defendants have stated this is already the case.

III. Documents

Plaintiffs also request the court issue a protective order concerning the document request accompanying the deposition notice. Specifically, Plaintiffs ask for the following:

- The accompanying Request for Production of Documents shall be limited to non-privileged, relevant, proportional documents not previously produced;
- Plaintiffs shall not be required to re-produce documents already produced in this action;
- Plaintiffs’ privacy, privilege, relevance, overbreadth, proportionality, burden, and duplication objections are preserved; and
- Defendants shall meet and confer in good faith regarding any specific document category they contend remains outstanding. (Notice of Motion, Nos. 6-9.)

Plaintiffs request essentially ask the court for protections the Code of Civil Procedure already provides. Plaintiffs can object to document requests. (CCP §2025.460(a).) If Defendants believe Plaintiffs have not provided all relevant

documents, they must meet and confer before bringing a motion to compel production. (CCP §2025.450(b)(2).) If Plaintiffs have previously produced a responsive document, they would not need to physically reproduce the document but they would have to identify the document and state when it was initially produced and in what format. Since all of Plaintiffs' requests concerning the document request are already covered by the CCP, it is not necessary for this court to make the requested orders. They would be duplicative of the Code.

Defendants do not provide any arguments concerning the document request part of the motion.

Deny the motion with respect to the document request protections.

IV. Sanctions

Defendants ask the court to issue \$1,532.50 in sanctions. Defendants argue the motion is meritless and they are entitled to sanctions under CCP §2025.420(h) which states:

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendants are correct Plaintiffs did not act with substantial justification. Plaintiffs' reasons for not wanting to attend the deposition in person are easily remedied (allowing counsel to appear remotely if expense for travel is truly an issue). Defendants' counsel made numerous suggestions and tried to find a solution with Plaintiffs before Plaintiffs filed the instant motion. Defendants are entitled to sanctions.

Defendants' counsel asks for \$1,532.50 in sanctions for 3.5 hours reviewing the motion and drafting the opposition at a rate of \$275/hour. Counsel anticipates spending an additional two hours reviewing the Reply and attending the hearing. Counsel spent an additional \$20 in filing fees. The court reduces the requested amount by \$275 as it is unlikely that counsel will need a full two hours to review the Reply and attend the hearing on the motion.

The Court awards \$1,257.50 in sanctions against Plaintiffs payable within 30 days.

Summary

Deny the request for a protective order to have Plaintiff appear remotely for her deposition.

The Court orders that Defendants not be physically present at Plaintiff's deposition.

Deny the motion with respect to the document request protections.

Award \$1,257.50 in sanctions against Plaintiffs payable within 30 days of this order.